

ELIZABETH II



1967 CHAPTER xxxv

An Act to confer further powers on the Somerset County Council and on local, highway and other authorities in the administrative county of Somerset in relation to lands and highways and the local government, improvement, health and finances of the county; and for other purposes.

[27th July 1967]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands and highways and for the local government, improvement, health and finances of the administrative county of Somerset and that the powers of the county council of that administrative county and of local, highway and other authorities within that administrative county should be enlarged and extended as by this Act provided:

(2) It is expedient that the other provisions contained in this Act be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

(4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, 1933 c. 51, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short and
collective
titles.

1960 c. xxvii.

1.—(1) This Act may be cited as the Somerset County Council Act 1967.

(2) The Somerset County Council Act, 1960, and this Act may be cited together as the Somerset County Council Acts, 1960 and 1967.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Planning.

Part IV.—Highways.

Part V.—Fire protection and public safety.

Part VI.—Burial grounds.

Part VII.—Finance.

Part VIII.—Miscellaneous.

Part IX.—General.

Interpre-
tation.

1959 c. 25.

3.—(1) In this Act the several words and expressions to which meanings are assigned by section 295 of the Highways Act, 1959, have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act, unless otherwise expressly enacted or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

1933 c. 51.

“ Act of 1933 ” means the Local Government Act, 1933;

1936 c. 49.

“ Act of 1936 ” means the Public Health Act, 1936;

“ Act of 1959 ” means the Highways Act, 1959;

1960 c. 16.

“ Act of 1960 ” means the Road Traffic Act, 1960;

1961 c. 64.

“ building regulations ” has the same meaning as in section 4 of the Public Health Act, 1961;

“ claimed county road ” has the same meaning as in section 4 of the Act of 1959;

PART I
—cont.

“contravention” in relation to a condition, restriction or requirement includes failure to comply with that condition, restriction or requirement and “contravene” shall be construed accordingly;

“Council” means the county council of the county;

“county” means the administrative county of Somerset;

“county fund” means the county fund of the Council;

“county road” means a highway which by virtue of section 21 of the Act of 1959, or some other enactment, is a county road;

“daily fine” means a fine for each day on which an offence is continued after conviction thereof;

“district” means a borough or an urban or rural district in the county;

“enactment” includes an enactment in a local or private Act of Parliament and a provision of an order, scheme, regulation or other instrument made under or confirmed by a public general, local or private Act of Parliament;

“fire authority” has the same meaning as in section 38 of the Fire Services Act, 1947;

1947 c. 41.

“functions” includes powers and duties;

“highway authority” means—

(a) in the case of a trunk road, the Minister of Transport or, with his consent, the authority who are for the time being acting as his agent under the Act of 1959, with respect to that trunk road;

(b) in the case of a county road in the county, except a claimed county road, and in the case of any other highway for the time being maintained by the Council, the Council; and

(c) in the case of any other highway, the local authority for the district in which the highway is situate;

“land” includes land covered by water and any interest or right in, over or under land;

“local authority” means the council of a district;

“magistrates’ court” has the same meaning as in the Magistrates’ Courts Act, 1952;

1952 c. 55.

PART I
—cont.

1946 c. 31.

“ maintenance ” includes repair and “ maintain ” shall be construed accordingly;

“ Minister ” means the Minister of Housing and Local Government;

“ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946;

“ owner ”, in relation to any premises, means a person, other than a mortgagee not in possession, who, whether in his own right or as trustee or agent for any other person, is entitled to receive the rack rent of the premises or, where the premises are not let at a rack rent, would be so entitled if the premises were so let;

“ parish council ” means the parish council of a rural parish in the county, or where there is no parish council, the parish meeting of such parish;

“ premises ” includes land and buildings;

“ rural district ” means a rural district in the county;

“ rural district council ” means the council of a rural district;

“ statutory undertakers ” means persons authorised by any enactment to carry on any of the following undertakings, that is to say:—

(a) a railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour, pier or lighthouse undertaking; or

(b) an undertaking for the supply of electricity, gas, water or hydraulic power;

“ traffic sign ” has the same meaning as in section 51 of the Act of 1960;

“ trunk road ” means a highway, or a proposed highway, which, by virtue of subsection (1) of section 7 of the Act of 1959 or section 14 thereof, or by virtue of an order or direction made or given under the said Act or any other Act, is a trunk road;

“ urban district ” means a borough or an urban district in the county;

“ verge ” includes land situate between two carriageways and any part of a street which is not a carriageway, footway or cycle track.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

LANDS

4.—(1) The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired or to be acquired by the Council under this Act with respect to his reinstatement.

Power to
reinstate
owners or
occupiers of
property.

(2) Any such agreement may provide for the exchange of land, and for that purpose the Council may pay or receive money for equality of exchange.

5.—(1) If the Council—

Suspension of
restrictive
covenants.

- (a) acquire land by agreement; or
- (b) enter into an agreement to acquire land; or
- (c) have acquired land by agreement before the passing of this Act; or
- (d) appropriate (whether before or after the passing of this Act) land previously acquired by agreement;

for a purpose for which they are for the time being authorised to acquire land compulsorily, or could under any enactment be authorised to acquire the land compulsorily, and the land is, before such acquisition or agreement to acquire, affected by any restriction arising under covenant as to the user thereof or the building thereon, the Council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Council shall—

- (a) in four successive weeks publish in one or more local newspapers circulating in the locality in which the land referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the locality where a copy of the resolution and map may be inspected and specifying the period (not being less than three months from the first publication of the notice) within which, and the manner in which, objections to the suspension of the restriction can be made;
- (b) on or before the date of the first publication of the said notice serve by registered post or the recorded delivery service a copy of the said notice on every person who appears to them, after diligent inquiry, to be entitled to the benefit of the restriction to which the resolution relates; and

PART II
—cont.

(c) on or before the date of the first publication of the said notice post a copy or copies of the said notice in a prominent position on the land to which the resolution relates.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister within the period specified in the notice and by sending a copy thereof to the Council.

(5) If any objection is duly made as aforesaid and is not withdrawn, the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister, and before confirming the resolution, the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and, after considering the report of the person who held the inquiry, may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section, or if all objections so made are withdrawn, the restriction shall be suspended on and after the date of the expiration of the period specified in the notice, or the date of the withdrawal of the objection, or (if more than one) the last objection, or the date on which the Council acquire the land (whichever is the latest).

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution, the restriction shall be suspended on and after such date as the appropriate Minister shall determine, not being earlier than the date on which the Council acquire the land.

1965 c. 56.

(7) The Council shall pay compensation in accordance with the provisions of section 10 of the Compulsory Purchase Act 1965 to any person entitled to the benefit of a restriction suspended under the powers of this section who suffers loss in consequence thereof, and the amount of the compensation shall, in case of dispute, be determined in accordance with the Land Compensation Act, 1961.

1961 c. 33.

(8) Any restriction suspended under the powers of this section shall be unenforceable so long as the Council are the owners of the land to which the restriction relates, or, if the Council convey the land to any body for any of the purposes of the Education Acts, 1944 to 1967, so long as the land is used by that body for the purpose of those Acts, and, if compensation is paid by the Council under subsection (7) of this section in respect of the suspension of a restriction relating to the building upon, or use of, land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that land may be used for a particular purpose, the restriction shall,

after any subsequent conveyance or disposition of the land to a person, otherwise than for any of the purposes of the Education Acts, 1944 to 1967, remain unenforceable only so long as the land is used for that purpose.

(9) If the Council dispose of any land to which the restriction suspended under the powers of this section relates, they shall, in two successive weeks, publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(10) Nothing in this section shall apply to—

(a) any restriction arising under a covenant granted to the National Trust for Places of Historic Interest or Natural Beauty restricting the development or use of land; or

(b) any restriction for—

(i) the protection of, or for securing access to, apparatus of any statutory undertakers or local authority; or

(ii) the prevention of pollution of water which any statutory water undertakers are for the time being authorised to take;

contained in any deed, wayleave agreement or other instrument.

(11) In this section “the appropriate Minister” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Council have acquired or agreed to acquire that land.

6.—(1) The Council by means of an order made by the Council and submitted to and confirmed by the confirming authority may be authorised to create in favour of the Council in or over any land which under any enactment the Council may be authorised to acquire compulsorily any easement or other right in or over or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties. Compulsory acquisition of easements.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in or over or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

PART II
—cont.
1946 c. 49.

(3) The Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946 and as if—

- (a) the expression “compulsory purchase of land” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and
- (b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

1965 c. 56.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act 1965.

(5) In this section the expression “confirming authority” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

Compensation
may be in
land.

7.—(1) The Council, when they are required by any enactment to make compensation to any person interested in any lands, may by agreement with such person make such compensation wholly or partly in works, land or money, but in the case of land for the alienation of which the consent of any Government department is required, only with such consent.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any land or interest in land from them under this section from any rents, covenants, restrictions, reservations, terms or conditions made payable by or contained in any conveyance, lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Council or any persons from or through whom the Council have derived title to it.

Undertakings
and
agreements
binding
successive
owners.

8.—(1) Every undertaking given by or to the Council to or by the owner of a legal estate in land and every agreement made between the Council and any such owner being an undertaking or agreement—

- (a) given or made under seal either on the passing of plans or otherwise in connection with the land; and

(b) expressed to be given or made in pursuance of this section;

shall be binding not only upon the Council and any owner joining in the undertaking or agreement but also upon the successors in title of any owner so joining and any person claiming through or under them.

(2) Such an undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act, 1925. 1925 c. 22.

(3) Any person upon whom any such undertaking or agreement is binding shall be entitled to require from the Council a copy thereof.

9.—(1) Whenever it becomes necessary for the Council, or any of their officers, contractors or workmen, to enter, examine or lay open any land (not being land on which buildings for manufacturing purposes are erected) for the purpose of making plans, surveying, measuring, taking levels or making trial holes, and the owner or occupier of such land refuses to permit the same to be entered upon, examined or laid open for the purposes aforesaid or any of them, the Council may, after notice to such owner or occupier, apply to a magistrates' court for an order under this section. Entry on land for certain purposes.

(2) If sufficient cause is shown for the application the court may make an order accordingly, and on such order being made the Council, or any of their officers, contractors or workmen, may at all reasonable times between the hours of nine in the forenoon and six in the afternoon enter, examine or lay open the land mentioned in such order for such of the said purposes as are therein specified without being subject to any action or molestation for so doing:

Provided that no entry shall be made or works commenced in pursuance of this section unless at least seven days' notice of the intended entry and of the object thereof be given to the owner and occupier of the land intended to be entered.

(3) The Council shall at their own expense and with all due speed and diligence make good and restore to its former condition any land laid open by them, or their officers, contractors or workmen, and shall make good, to the reasonable satisfaction of the owner and occupier of the land entered, all damage or loss sustained by them in consequence of such entry, examination or laying open, and any dispute as to the amount of damage or loss so sustained shall, in default of agreement, be assessed by a magistrates' court, and the amount so assessed shall be recoverable in such court.

(4) If any statutory undertakers refuse to permit any of their operational land, or the British Railways Board refuse to permit

PART II
—*cont.*

any land belonging to them and used for the purposes of their undertaking, to be entered upon, examined or laid open for any of the purposes mentioned in subsection (1) of this section, application under that subsection shall not be made to a magistrates' court, but any question arising as to whether permission for any such land to be so entered upon, examined or laid open is unreasonably withheld shall be determined by a single arbitrator appointed in default of agreement by the President of the Institution of Civil Engineers, and if the arbitrator shall determine that such permission is unreasonably withheld, the Council shall have the like powers of entering, examining and laying open the said land for the purposes for which permission was refused and be under the same liabilities as under an order of the court made under subsection (2) of this section.

For protection
of certain
statutory
undertakers.

10. For the protection of certain undertakers, the following provisions shall, unless otherwise agreed in writing between the authority and the undertakers concerned, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires—

“operational land” has the same meaning as in section 221 of the Town and Country Planning Act, 1962;

“undertakers” means—

the Central Electricity Generating Board;
the Southern Gas Board;
the South Western Gas Board;
the Southern Electricity Board;
the South Western Electricity Board;

or any of them, as the case may be:

(2) Nothing in section 5 (Suspension of restrictive covenants) of this Act shall apply to any restriction for the benefit or protection of, or for securing access to, any operational land of the undertakers contained in any deed, wayleave agreement or other instrument.

Application
of Part II to
local
authorities.

11.—(1) The provisions of this Part of this Act shall apply to a local authority, and those provisions shall accordingly have effect with any necessary modifications, including the substitution of “local authority” for “Council” and “district” for “county”.

(2) In its application to a local authority section 5 (Suspension of restrictive covenants) of this Act shall have effect as if in paragraph (b) of subsection (10) for the words “local authority” there were substituted the words “the Council”.

PART III

PLANNING

12.—(1) (a) The appropriate authority may by order prohibit the placing and leaving of any vehicle, trailer, caravan or tent on the verge of or on unenclosed land adjacent to any part or parts of any trunk road or county road in the county. Prohibition of parking or camping on highway verges, etc.

(b) In this subsection “unenclosed land” means any waste land adjacent to and within 15 yards of the road and any common land or other unenclosed land of whatsoever description within that distance from the road.

(2) If any person contravenes the provisions of an order under this section, he shall be liable to a fine not exceeding five pounds.

(3) Where it is proposed to make an order under this section the appropriate authority shall have regard to the availability of—

(a) suitable parking facilities (whether on or off the road and whether provided by the appropriate authority or by some other person) for use as an alternative to those which before the making of the order have been lawfully used for that purpose; and

(b) public sanitary conveniences in convenient situations.

(4) (a) An order made under this section shall—

(i) take effect from such date as may be specified in that behalf in the order;

(ii) specify the road or roads and the unenclosed land to which it is to apply; and

(iii) specify the particular days and the particular hours between 9 o'clock in the evening and 9 o'clock in the morning during which the prohibition applies.

(b) An order made under this section may—

(i) specify exceptions in respect of which the prohibition is not to apply; and

(ii) at any time be altered or revoked by a subsequent order made in like manner.

(5) Before making any order under this section the appropriate authority shall publish in one or more local newspapers circulating in the area in which is situated the road or roads to which the order applies a notice—

(a) stating the general effect of the order;

PART III
—cont.

- (b) specifying the offices of every local authority in whose district any part of the said area is situated where a copy of the draft order may be inspected by any person free of charge at all reasonable hours during a period of twenty-eight days from the date of the first publication of the notice; and
- (c) stating that, within the said period, any person may by notice to the Minister object to the making of the order.

(6) The appropriate authority shall also publish a notice in the London Gazette stating that they are about to make an order under this section naming the area in which is situated the road or roads to which the order will apply, specifying the offices of every local authority in whose district any part of the said area is situated where a copy of the draft order may be inspected and giving the name and date of issue of a local newspaper in which the notice explaining the general effect of the order will be found.

(7) (a) If before the expiration of a period of twenty-eight days from the first publication of the notice referred to in paragraph (b) of subsection (5) of this section or of twenty-five days from the publication of the notice in the London Gazette, an objection to the making of the order to which the notice relates is duly made to the Minister and the objection is not subsequently withdrawn, the order shall not take effect until it is confirmed by the Minister.

(b) Where the Minister receives any objection to the making of an order he shall send to the appropriate authority a copy of every such objection and the Minister, after considering every such objection and causing if he thinks fit a local inquiry to be held, may confirm or refuse to confirm the order and, if he confirms it, may do so subject to such modifications (if any) as he may think desirable.

(8) Where an order has been made and confirmed under this section, the appropriate authority shall erect or cause to be erected on or near any road or land to which such an order applies notices indicating the nature and extent of the prohibitions imposed by the order.

(9) (a) No order made under this section shall apply to the placing and leaving on a verge or land of—

- (i) any vehicle, trailer, caravan or tent if it is not left for more than two hours;
- (ii) any vehicle, trailer, caravan or tent by or with the consent of the occupier of the land;

PART III
—cont.

- (iii) any vehicle, trailer or caravan placed and left because of or in connection with mechanical breakdown;
- (iv) any vehicle, trailer, caravan or tent placed and left because of the illness of any person accompanying any such vehicle, trailer, caravan or tent;
- (v) any vehicle when in use solely for the purpose of itinerant trading with the occupants of premises adjoining a verge or land;
- (vi) any vehicle, trailer, caravan (not used for human habitation) or tent used by any statutory undertakers in connection with or for the purposes of their undertakings or by the highway authority or the local authority in or in connection with the exercise of their statutory functions.

(b) No order made under this section shall apply to any land on which tents or caravans are erected or placed in accordance with the terms of a licence granted under section 269 of the Act of 1936 or in accordance with the terms and conditions on which permission has been given for the development by the local planning authority under the provisions of the Town and Country Planning Act, 1962, or in respect of which a site licence is for the time being in force under Part I of the Caravan Sites and Control of Development Act, 1960.

1962 c. 38.

1960 c. 62.

(10) In this section—

“appropriate authority” means—

(a) in the case of a trunk road, with the consent of the Minister of Transport the authority who are for the time being acting as the agent of the said Minister under the Act of 1959, with respect to that trunk road;

(b) in the case of a county road in the county, except a claimed county road, the Council;

(c) in the case of a claimed county road, the local authority for the district in which the highway is situate;

“sanitary conveniences” has the same meaning as in section 90 of the Act of 1936.

13.—(1) Where it appears to the Council after consultation with the local authority of the district to be necessary to do so, the Council may provide in a rural district (except in any district or part of a district which has been designated as part of a national park under section 5 of the National Parks and Access to the Countryside Act, 1949)—

Provision of camping sites, parking places, accommodation, etc.
1949 c. 97.

(a) camping sites and parking places together with means of access thereto and egress therefrom; and

PART III
—cont.

(b) accommodation, meals and refreshments in connection with any such camping site or parking place.

(2) The Council may—

(a) do all such things as are necessary to adapt any land for use for any of the purposes authorised by subsection (1) of this section and, in particular but without prejudice to the generality of the foregoing, provide and maintain such buildings, works and other conveniences in connection therewith as appear to them necessary or expedient;

(b) appoint with or without remuneration such officers or servants as may be necessary for the superintendence of any camping site, parking place or accommodation provided under subsection (1) of this section;

(c) make reasonable charges for the use of any such camping site, parking place or accommodation by any person;

(d) make regulations as to the use of any such camping site, parking place or accommodation.

(3) No accommodation, meals or refreshments shall be provided under this section except as incidental or ancillary to any camping site or parking place so provided, and then only where—

(a) the existing facilities therefor are in the opinion of the Council inadequate or unsatisfactory either generally or as respects any description of accommodation, meals or refreshments (as the case may be); and

(b) the Council have first taken all reasonable steps to secure the provision of accommodation, meals or refreshments (as the case may be) by some other person.

(4) The Council shall not under this section themselves sell intoxicating liquor, and it shall be a condition of any agreement entered into between the Council and any person under this section under which refreshments may be provided at any building provided under paragraph (a) of subsection (2) of this section that any application under the Licensing Act 1964 for a justices' on-licence shall either be restricted to a restaurant licence or, if it is not so restricted, shall have attached to it a condition that only persons bona fide resorting to a camping site or parking place provided under this section with the intention of staying there overnight may be supplied thereunder.

(5) The Council may enter into an agreement with any person for the doing by him of anything which the Council have power to do by virtue of the foregoing provisions of this section, and any

such agreement may contain such incidental and consequential provisions as appear to the Council to be necessary or expedient for the purposes of the agreement, including in particular but without prejudice to the generality of the foregoing, provisions for—

- (a) a contribution, whether by way of loan or otherwise by the Council, towards the reasonable expenses incurred by any person in providing, maintaining and conducting a camping site, parking place or accommodation and any facilities connected therewith;
- (b) the charges to be made to persons making use of the camping site, parking place or accommodation;
- (c) the regulation of the use of the camping site, parking place or accommodation.

(6) Where the Council propose to acquire any land or to use any land appropriated by them for the purposes of this section, or to lease any land for the purposes of any agreement made under subsection (5) of this section, they shall, before carrying the proposal into effect—

- (a) cause notice of the proposal (specifying the land to which it relates and notifying the period, which shall not be less than twenty-eight days, within which any representations relating to the proposal shall be sent in writing to the Council) to be published in at least one newspaper circulating in the district in which the land is situate and cause a copy of the notice to be posted for not less than fourteen days on, or adjacent to, the land; and
- (b) consider any representations which are sent to them in writing within the time fixed in that behalf, and give notice of their decision on the representations to the person by whom they are made.

(7) The Council may contribute towards or advance money by way of loan for—

- (a) the reasonable expenses incurred by any person in doing anything which the Council has power to do by virtue of the foregoing provisions of this section;
- (b) the expenses incurred by a local authority in exercising their powers under this section.

(8) No power conferred upon the Council by this section shall be exercised in such a manner—

- (a) as to be at variance with a trust subject to which land or a building is held, managed or controlled by the Council, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State,

PART III
—cont.

or, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or

- (b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by, or granted to, the Council, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

(9) The powers of the Council under this section (except the power to provide parking places) may be exercised by a local authority in relation to their district and in its application to a local authority this section shall have effect with any necessary modifications including—

- (a) the substitution of “local authority” for “Council”; and
- (b) in subsection (1)—
- (i) the omission of the words “after consultation with the local authority of the district”;
 - (ii) the substitution of the word “their” for the words “a rural”.

PART IV

HIGHWAYS

Amendment
of section 9 of
Somerset
County
Council Act,
1960.
1960 c. xxvii.

14.—(1) Section 9 (Sale of articles on verges, etc.) of the Somerset County Council Act, 1960, shall have effect as if—

- (a) in subsection (1) after the word “applies” where that word first occurs there were inserted the words “or on any part of a field adjacent thereto within 15 yards thereof”;
- (b) for subsection (3) there were substituted the following subsection:—

“(3) (a) This section applies to roads in the county of any of the following descriptions:—

- (i) all trunk roads and roads which are classified as principal roads by the Minister under the Local Government Act 1966;

- (ii) any other county road, or part of a county road, to which the Minister may by order, on the application of the highway authority, apply this section.

1966 c. 42.

PART IV
—cont.

(b) Before making application for an order under this subsection, the highway authority shall publish once at least in each of two successive weeks in a local newspaper circulating in the locality in which the road is situated a notice stating the general effect of the intended order, and stating that within a period specified in the notice (not being less than twenty-eight days from the first publication of the notice) any person may object to the application by sending notice of his objection and of the grounds thereof to the Minister and by sending a copy thereof to the highway authority.

(c) If, before the expiration of the period specified in the notice, any objection to the application is received by the Minister from any person appearing to him to be affected, the Minister shall, before making the order, cause a local inquiry to be held and consider the report of the person who held the inquiry.”;

(c) in paragraph (a) of subsection (4) at the end thereof there were added the words “ and with the permission of the highway authority ”;

(d) after paragraph (c) of subsection (4) there were inserted the following paragraphs:—

“ (d) the sale of food, goods, provisions, articles or things from any premises used as a shop pursuant to a permission granted or deemed to have been granted under the provisions of the Town and Country Planning Act, 1962, or any order or regulation made thereunder or in respect of which an enforcement notice cannot be served under section 45 of the said Act of 1962 by virtue of subsection (2) of that section; or

(e) the sale by the occupier of land used for agriculture or horticulture, and from such land, of the produce thereof, unless in relation to any particular location on such land a magistrates’ court, on the complaint of the highway authority under section 43 of the Magistrates’ Courts Act, 1952, determines because the use thereof for the purpose of such sale would adversely affect the safety of persons using the adjoining road that the exemption conferred by this paragraph shall not apply to that location or that the said exemption shall not apply until any condition imposed by the court in relation to access to or

PART IV
—cont.

facilities for the parking of the vehicles of persons likely to frequent the said location in connection with such sale has been complied with.”;

(e) the following subsection were added:—

“(5) (a) Where an application is made to a highway authority for a permission under paragraph (a) of subsection (4) of this section then unless within twenty-eight days from the date of the receipt of the application the highway authority give notice to the applicant of their decision on the application the provisions of paragraph (b) of this subsection shall apply in relation to the application as if the highway authority had refused to grant the permission applied for;

(b) Any person aggrieved by the refusal of the highway authority to grant permission under paragraph (a) of subsection (4) of this section may appeal to a magistrates’ court and on any such appeal, the court may, if it appears to them that adequate facilities exist or will be provided for the parking of the vehicles of persons likely to frequent the shed, hut, shelter, booth, shop, stall or other erection, or the vehicle in question and that the provision, erection or placing of such erection or vehicle will not otherwise adversely affect the safety of persons using the adjoining road, by order direct the highway authority to withdraw such refusal and to issue the permission for which application was made”;

(f) subsection (5) were renumbered subsection (6).

1960 c. xxvii. (2) In accordance with the foregoing provisions of this section section 9 of the Somerset County Council Act, 1960, shall have effect as set out in Schedule 1 to this Act.

Erection of
village place
names.

15.—(1) A rural district council or parish council may, with the consent of the highway authority and subject to such conditions as the highway authority may impose, provide, erect and maintain in proper and convenient situations within their district or parish place-name signs of such size, colour and type as they may, subject to such consent, from time to time determine.

(2) Any sign provided or erected under this section shall comply with any order or regulation made by the Minister of Transport in respect of traffic signs, or any general or special directions given by him in pursuance of the Act of 1960.

PART V

FIRE PROTECTION AND PUBLIC SAFETY

16.—(1) Where plans for the erection of a building are in Building
accordance with building regulations deposited with a local plans: access
authority, the local authority shall reject the plans if they show— for fire
brigade.

(a) that the building will not be provided with such means
of access by the fire brigade as are necessary to enable
a fire in the building to be fought effectively; or

(b) that the building will interfere with the means of access
by the fire brigade to a neighbouring building to such
an extent as to render those means insufficient to enable
a fire in the neighbouring building to be fought
effectively.

(2) Where plans for the extension of a building are in accordance
with building regulations deposited with a local authority, the
local authority shall reject the plans if they show—

(a) that the extension will be such as to affect the adequacy
of the means of access by the fire brigade to the building
and that the building as extended will not be provided
with such means of access by the fire brigade as are
necessary to enable a fire in the building to be fought
effectively; or

(b) that the extension will interfere with the means of access
by the fire brigade to a neighbouring building to such
an extent as to render those means insufficient to enable
a fire in the neighbouring building to be fought
effectively.

(3) A local authority shall consult with the fire authority before
rejecting any plans in accordance with the provisions of sub-
section (1) or (2) of this section.

(4) In this section “access by the fire brigade” means access
by members of one or more fire brigades and their appliances,
and references to a neighbouring building are, in relation to a
neighbouring building for the erection, alteration or extension of
which plans have been passed, references to the neighbouring
building as erected, altered or extended in accordance with those
plans.

(5) If a local authority reject the plans under the authority of
this section, the notice given in pursuance of subsection (2) of
section 64 of the Act of 1936 shall specify that the plans have
been so rejected.

PART V
—cont.

(6) Any question arising under this section between a local authority and the person by whom, or on whose behalf, plans are deposited as to whether the local authority ought to pass the plans may, on the application of that person, be determined by a magistrates' court.

(7) This section shall not apply in respect of plans deposited for the erection of—

- (a) a one-storeyed private dwelling-house of a capacity of less than 18,000 cubic feet or such other capacity as the Secretary of State may by order prescribe; or
- (b) a private dwelling-house of two storeys neither of which storey has a floor area of more than 1,000 square feet or of such other capacity as the Secretary of State may by order prescribe;

not being a flat or maisonette.

(8) An order under subsection (7) of this section shall be made by statutory instrument and the local authority shall cause to be published in a local newspaper circulating in the district notice of the making of such order and of the general effect thereof.

(9) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice.

Fire
precautions
in certain
large
buildings.

17.—(1) No building of the warehouse class and no building used or intended to be used for the purpose of trade or manufacture shall be erected in the county of a cubic extent exceeding 250,000 cubic feet or extended to exceed that extent unless (in accordance with plans and particulars submitted in accordance with building regulations and approved for the purposes of this section after consultation with the fire authority by the local authority of the district in which the building is to be erected or is situate) it is—

- (a) provided with all such means of escape therefrom in case of fire as may be reasonably required; and
- (b) fitted with automatic fire alarms and a fire extinguishing system or with either such alarms or such system to the satisfaction of the local authority after consultation with the fire authority:

Provided that—

PART V
—cont.

(i) nothing in paragraph (a) of this subsection shall apply to a factory to which section 40 of the Factories Act, 1961, applies, to buildings to which section 59 of the 1961 c. 34. Act of 1936 applies or to premises to which the Offices, Shops and Railway Premises Act 1963 applies; 1963 c. 41.

(ii) nothing in paragraph (b) of this subsection so far as it relates to the provision of fire alarms shall apply to a factory to which subsection (7) of section 48 of the said Act of 1961 applies or to premises to which section 34 of the said Act of 1963 applies, nor so far as it relates to the provision of a fire extinguishing system shall the said paragraph apply to a factory to which subsection (1) of section 51 of the said Act of 1961 applies or to premises to which the said Act of 1963 applies.

(2) (a) The person proposing to erect or cause to be erected or extend or cause to be extended any building to which subsection (1) of this section applies shall, when submitting plans and particulars in accordance with building regulations, deposit with the local authority particulars showing how it is proposed to comply with the requirements of paragraphs (a) and (b) of subsection (1) of this section.

(b) A local authority at any time within a period of two months after the deposit of the particulars irrespective of any decision under building regulations—

(i) may refuse to approve them; or

(ii) may approve them subject to such conditions (if any) as, after consultation with the fire authority, they think fit.

(c) Where a local authority refuse to approve the particulars or approve them subject to conditions they shall give to the person who deposited the particulars notice stating their reasons for refusal or for the imposition of conditions:

Provided that if within the period of two months mentioned in paragraph (b) of this subsection the local authority fail to give such notice they shall be deemed to have approved the said particulars.

(3) (a) If any building to which the preceding subsections of this section are applicable is erected or extended in contravention of any of the requirements of paragraph (a) or (b) of subsection (1) of this section the local authority, without prejudice to their rights

PART V
—cont.

to take proceedings for penalties in respect of the contravention, may by notice require the person erecting or causing to be erected the building or extension either to pull down and remove it or, if he so elects, to effect such alterations therein as may be necessary in order to comply with the said requirements.

(b) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) All means of escape, fire alarms and fire extinguishing systems provided or fitted as the case may be, under the requirements of paragraphs (a) and (b) of subsection (1) of this section shall be properly maintained and kept free from obstruction.

(5) (a) A person who erects or causes to be erected or extends or causes to be extended a building in contravention of any of the provisions of this section shall be guilty of an offence under this section.

(b) The occupier of any premises who fails to maintain the means of escape, fire alarms and fire extinguishing systems provided or fitted as the case may be, under the requirements of paragraphs (a) and (b) of subsection (1) of this section, or to keep them free from obstruction, shall be guilty of an offence under this section.

(c) A person who commits an offence under this section shall on summary conviction be liable to a fine not exceeding fifty pounds and to a daily fine not exceeding ten pounds.

(6) Any person aggrieved by—

(a) a requirement of a local authority; or

(b) a refusal by a local authority to approve particulars; or

(c) a condition subject to which approval of particulars is given by a local authority;

under subsection (1) or (2) of this section may appeal to a magistrates' court, and on any such appeal the court may confirm, reverse or vary such requirement, refusal or condition.

(7) Any member of the fire brigade of the county who is duly authorised for the purpose shall, on producing, if so required, some duly authenticated document showing his authority, have a right to enter at all reasonable times any building to which subsections (1) to (3) of this section apply—

(a) for the purpose of ascertaining whether there is, or has been, in or in connection with the building, any contravention of the provisions of this section;

(b) for the purpose of ascertaining whether or not circumstances exist which would authorise a local authority to take any action under this section.

(8) The provisions of subsections (2), (3) and (4) of section 287 of the Act of 1936, shall apply to entry into a building for the purposes of subsection (7) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(9) Nothing in this section shall apply to any building—

(a) in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or

(b) exempted from the provisions of Part II of the Act of 1936 with respect to building regulations by paragraph (c) of section 71 of that Act.

(10) Any reference in this section to plans deposited in accordance with building regulations shall be construed as including a reference to any sections, specifications and written particulars deposited with the plans in accordance with the regulations or this section.

18. Neither of the foregoing sections of this Part of this Act shall apply to the mayor, aldermen and burgesses of the borough of Weston-super-Mare.

Certain provisions not to apply to Weston-super-Mare Corporation.

19.—(1) The fire authority may in relation to any substance likely to involve special hazard to persons engaged in normal duties of fire fighting—

Prescription of signs, etc., to be used on certain buildings.

(a) prescribe standard uniform signs or symbols or warning notices in a form approved by the Secretary of State clearly indicating the nature of the substance and the existence of danger to persons so engaged;

(b) by notice require the occupier of any building, or part of a building used for the manufacture or storage of the substance, to affix within such reasonable time as is specified in the notice and thereafter keep affixed and displayed in such position or positions as may reasonably be so specified in or outside the building or the part of the building used for such manufacture or storage, the appropriate sign, symbol or notice.

(2) Any person who fails to comply with the requirements of the fire authority under this section shall be liable on conviction to a fine not exceeding ten pounds and to a daily fine not exceeding five pounds.

PART V
—cont.Firemen's
switches for
luminous
tube signs.

20.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding 650 volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

(2) As from the coming into operation of this section, apparatus to which this section applies shall be provided with a cut-off switch on the low-voltage side of the transformer; and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the fire authority may impose, to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to install apparatus to which this section applies, the consumer shall give notice to the fire authority showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the coming into operation of this section, the consumer shall, not less than fourteen days before the coming into operation of this section, give notice to the fire authority—

(a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked;

(b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the fire authority as required by subsection (3) or (4) of this section the proposed, or, as the case may be, actual, position, colouring or marking of the switch shall be deemed to satisfy the requirements of the fire authority unless, within ten days from the date of the service of the notice, if the notice is served under subsection (3) of this section, or within twenty-eight days from the date of the service of the notice, if the notice is served under subsection (4) of this section, the fire authority have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the fire authority.

(7) A person aggrieved by a counter-notice served by the fire authority under subsection (5) of this section may appeal to a magistrates' court; and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) Where apparatus which does not comply with subsection (2) of this section is installed on or in any premises, the occupier of such premises shall be guilty of an offence.

(9) A person who fails to give notice as required by subsection (3) or (4) of this section shall be guilty of an offence.

(10) A person guilty of an offence under this section shall be liable to a fine not exceeding ten pounds and, in the case of an offence under subsection (8) of this section, to a daily fine not exceeding five pounds.

(11) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations, 1937, or any regulations that may be made under section 60 of the Electricity Act, 1947.

1947 c. 54.

(12) This section shall not apply to apparatus installed on or in premises or any part of premises in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

Provided that where any luminous tube sign to which, but for this subsection, subsection (1) of this section would apply, is proposed to be fitted on or in any such premises, the owner or occupier thereof shall before such apparatus is fitted give notice to the fire authority informing them of the position in which it is proposed to place the cut-off switch.

(13) This section shall come into operation in the county on 1st October, 1967.

(14) (a) The fire authority shall forthwith after the passing of this Act cause public notice to be given of the effect of the foregoing provisions of this section by advertisement in two or more newspapers circulating in the county and otherwise in such manner as the fire authority think fit.

(b) In any proceedings it shall be presumed, unless the contrary is proved, that the provisions of this subsection have been complied with.

(15) In this section "consumer" means a person supplied or entitled to be supplied with electrical energy by the Southern or South Western Electricity Board, as the case may be, for the purpose of operating apparatus to which this section applies.

PART V
—cont.
Oil-burning
equipment.

21.—(1) As from the appointed day any person intending to install or place oil-burning equipment in any building in a district, whether the building is erected before or after the passing of this Act, or on any land in the district, shall give not less than fourteen days' notice to the local authority of his intention so to do.

(2) (a) The Council, if requested by the local authority to do so, may make byelaws for securing that, in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws, proper arrangements will be made for preventing or reducing danger from fire.

(b) Byelaws made under this section may include provisions prescribing in connection with the installation or placing of oil-burning equipment in any such building or on any such land as aforesaid, the works, apparatus and fittings and fire-fighting appliances to be provided and the mode of arrangement and requirements as to maintenance of any such works, apparatus, fittings and appliances.

(c) As respects byelaws made under this section, the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Secretary of State.

(d) Section 250 of the Act of 1933 shall in its application to byelaws made under this section be construed as if it had been amended by the insertion of the words "or confirm with modifications" after the word "confirm" in the second place where that word occurs in subsection (6) thereof.

(3) (a) Any oil-burning equipment installed or placed in any building or on any land in a district in accordance with plans and specifications submitted to, and passed by, the local authority shall for the purposes only of this section, be deemed to be approved by the local authority as complying with the appropriate specification for such equipment contained in byelaws made under this section in respect of all matters shown in the plans and specifications so passed.

(b) If the local authority do not, within two months from the submission of plans and specifications of any equipment under this subsection, notify the person by whom they were submitted of the rejection or passing of the said plans and specifications, they shall be deemed to have passed them.

(4) If, in relation to the installation or placing of any oil-burning equipment in any building or on any land in a district the local authority are satisfied, after consultation with the fire authority, that proper arrangements will be made for preventing or reducing danger from fire, they may, on the application of the person

proposing to install or place such equipment, approve the installation or placing of the equipment notwithstanding that it may not comply with the appropriate specification for such equipment contained in byelaws made under this section.

(5) (a) Any person aggrieved by the refusal of the local authority to approve the installation or placing of any equipment under subsection (4) of this section may within twenty-one days from the receipt of notification of the refusal appeal to the Secretary of State.

(b) Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal or may vary the decision of the local authority against which the appeal is made.

(c) The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the local authority given under the byelaws.

(6) (a) If any person installs oil-burning equipment in any building or on any land in a district without giving notice to the local authority in accordance with subsection (1) of this section he shall be liable to a fine not exceeding fifty pounds.

(b) If any person contravenes any byelaw made under subsection (2) of this section other than pursuant to an approval granted under subsection (4) of this section he shall be liable to a fine not exceeding fifty pounds and if—

(i) that person after conviction of the contravention; or

(ii) any other person after notice of the conviction has been served on him by the local authority;

uses the oil-burning equipment in contravention of that byelaw he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(7) Nothing in this section or any byelaws made thereunder shall apply to—

(a) the installation of any oil-burning equipment—

(i) in a house if the storage tank or tanks supplying or designed or adapted to supply oil to the boiler has or have a total capacity of less than 1,200 gallons; or

(ii) in any other premises if such tank or tanks has or have a total capacity of less than 1,000 gallons; or

(b) the installation of any oil-burning equipment in any building in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or

PART V
—cont.

(c) the installation of any oil-burning equipment by the British Railways Board, the Central Electricity Generating Board, the Southern Electricity Board, the South Western Electricity Board, the Southern Gas Board, or the South Western Gas Board for the purposes of their respective undertakings:

Provided that the exemption conferred by virtue of this paragraph shall not extend—

(i) to a house; or

(ii) to a building used as offices or showrooms other than, in the case of the British Railways Board, a building so used which forms part of a railway station.

1961 c. 34.

1963 c. 41.

(8) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the Factories Act, 1961, or the Offices, Shops and Railway Premises Act 1963, apply on the coming into force in relation to those premises of regulations made under either of those Acts and relating to the same subject-matter as this section.

(9) In this section—

“ apparatus and fittings ” includes pipes and pipe fittings, taps, valves, pumps, gauges, vessels, fans and filters;

“ boiler ” means a boiler, furnace, heater, oven or similar plant;

“ house ” means a dwelling-house, whether a private dwelling-house or not, and includes a flat and maisonette;

“ oil-burning equipment ” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catchpits and any other equipment used for or in connection with the heating of the boiler;

“ storage tank ” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler.

(10) (a) In this section “ the appointed day ” means such day as may be fixed by resolution of a local authority subject to and in accordance with the provisions of this subsection.

(b) Different days may be fixed under this subsection for the purpose of different districts.

(c) The local authority shall cause to be published in a local newspaper circulating in the district notice—

(i) of the passing of any such resolution and of the day fixed thereby; and

(ii) of the general effect of the provisions of subsections (1) to (9) of this section;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(d) Either—

PART V
—cont.

- (i) a copy of any such newspaper containing any such notice; or
- (ii) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

22. Nothing in the foregoing sections of this Part of this Act shall affect the operation of the Fire Services Acts, 1947 to 1959, the Factories Act, 1961, or the Offices, Shops and Railway Premises Act 1963, or any regulations or orders made thereunder or building regulations.

Saving for certain enactments.
1961 c. 34.
1963 c. 41.

23.—(1) No person shall within the county dispose of or deposit any container (including a container attached to a vehicle or machine) which has been used for the storage of inflammable, explosive or poisonous substance and is no longer used for that purpose unless he takes all such steps as may be reasonably necessary to prevent danger from the container to any person or property.

Disposal of dangerous containers.

(2) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a fine not exceeding twenty pounds and the local authority may take such steps as may be reasonably necessary to prevent danger from the container and may recover from that person the expenses incurred by them in so doing.

(3) In this section “poisonous substance” means a substance specified in the Poisons List for the time being in force under section 17 of the Pharmacy and Poisons Act, 1933.

1933 c. 25.

24.—(1) If it appears to a local authority that for the prevention of danger to persons generally or to property, any tree in their district should be lopped, cut, removed or felled, the local authority may serve a notice on the owner or occupier of the premises on which the tree is growing or situated, requiring him within twenty-one days to lop, cut, remove or fell the tree or execute such other works as the local authority may consider necessary to prevent the danger.

Removal, etc., of dangerous trees.

(2) The provisions of section 276 of the Act of 1936 relating to the sale of certain materials shall for the purposes of this section have effect as if the expression “materials” included timber.

PART V
—cont.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section:

Provided that for the purposes of such application the said section 290 shall have effect as if for paragraph (a) of subsection (3) thereof there were substituted the following paragraph:—

“(a) that the notice or requirement is unreasonable;”.

Rescue
apparatus.

25.—(1) A parish council may, on any land which is for the time being owned by them or is under their control, provide and maintain apparatus for use in the rescue of persons in danger of drowning and structures for the storage or safe keeping of any such apparatus.

(2) A parish council may contribute to the expenses incurred by any other person in providing in the parish any apparatus or structure as aforesaid.

(3) Any parish council may combine with or contribute to the expenses of any other parish council in exercising their powers under this section.

PART VI

BURIAL GROUNDS

Interpretation
of Part VI.

1900 c. 15.

26. In this Part of this Act—

“burial authority” has the same meaning as in section 11 of the Burial Act, 1900;

“burial ground” includes a cemetery or crematorium;

“memorial” means any object erected, placed or planted for the commemoration of the dead, and includes any wall, kerb or railing protecting, enclosing or marking a grave or memorial.

Agreements
to maintain
graves and
memorials.

27.—(1) A burial authority in the county may agree with any person, in consideration of the payment of a sum by him, to maintain, for a period fixed by the agreement, a grave or memorial in a burial ground provided by the burial authority.

(2) In this section, “grave” includes a grave space, niche or urn.

Extension of
power to
maintain
burial
grounds.

28.—(1) The powers of a burial authority in the county in relation to a burial ground maintainable by them shall include power—

(a) to put, and keep, in order any memorial therein;

(b) to level any grave therein;

(c) to remove the whole or any part of a memorial therein;

(d) to alter the position of any such memorial.

(2) Before exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of this section, the burial authority shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in their area with an interval between the dates of publication of not less than six clear days;
- (b) display a notice thereof in a conspicuous position in the burial ground; and
- (c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the burial authority's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the burial authority will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the burial authority before the date specified under paragraph (b) of subsection (3) of this section, that proposal shall not be carried out without the consent of the Minister, unless the notice is withdrawn.

(5) The burial authority may put to such use as they think appropriate, or destroy any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a memorial is removed by the burial authority under this section, the burial authority may erect at their own expense, in substitution, a memorial of a value not exceeding twenty-five pounds.

PART VI
—cont.

(7) The burial authority shall cause a record to be made of each memorial taken from the burial ground under this section containing—

(a) the details of any inscription on it; and

(b) if it is intended to preserve the memorial, details of the place to which it has been taken;

and shall deposit a copy of the record with the Registrar General.

(8) (a) Nothing in the foregoing provisions of this section shall relieve the burial authority from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court.

(b) Subsections (2) to (4) of this section shall not have effect in relation to any work for which the burial authority obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

(9) In this section “grave” includes a grave space.

For
protection of
Common-
wealth War
Graves
Commission.

29.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

“Commonwealth war burial” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

(2) In relation to any burial ground to which the provisions of section 28 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947, the burial authority shall—

(a) not later than the date upon which such notice is first published in a newspaper circulating in their area, serve upon the Commission a copy of any notice which the burial authority are required to publish pursuant to the said section 28;

(b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 28;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

PART VI
—cont.

(3) The burial authority shall not in pursuance of the powers of the said section 28 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely—

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty of a consistory court after prior notification to the Commission of the application for the licence or faculty;
- (c) that in the case of any headstone placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the burial authority and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Minister under subsection (4) of the said section 28, the burial authority shall, not later than the date on which the matter is referred to the Minister, inform the Commission in writing of such reference and the Minister shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Minister.

PART VII

FINANCE

30.—(1) The Council may borrow—

Power to
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

PART VII
—cont.

1946 c. 58.

Power to
Council to
raise money
by issue of
bills.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

31. In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

- (1) for any purpose for which the Council are authorised to borrow;
- (2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “ Somerset County Council bills ” and in this section referred to collectively as “ bills ” and separately as “ a bill ”) subject to and in accordance with the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:
- (e) The Council may make regulations providing for—
 - (i) the preparation and form and the mode of issue, payment and cancellation of bills;
 - (ii) the issue of a new bill in lieu of one defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;
 - (iv) the giving of a proper discharge on the payment of a bill; and
 - (v) amending or revoking any regulations previously made or deemed to have been made under this paragraph:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the

bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last mentioned bills) exceed—

(i) the sum of one million five hundred thousand pounds; or

(ii) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;

whichever is the greater:

(h) Subject to the provisions of the last preceding paragraph the Council may renew a bill at maturity:

(i) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.

32.—(1) In its application to the investment by the Council Extension of
under subsection (3) of section 21 of the Local Government power to
Superannuation Act, 1937, of any moneys forming part of, invest
but not for the time being required to meet payments out of, superannuation
the superannuation fund maintained by the Council under that fund moneys.
Act, the Trustee Investments Act, 1961, shall have effect as if— 1937 c. 68.
1961 c. 62.

(a) the following paragraph were included in Part III
(Wider-Range Investments) of Schedule 1 to that Act:—

“ 4. In any securities issued in any of the scheduled territories within the meaning of section 1 of the Exchange Control Act, 1947, or in Canada or in the 1947 c. 14.
United States of America, or in any of the following countries, namely, Austria, Belgium, Denmark, France, Holland, Italy, Luxembourg, Norway, Portugal, Spain, Sweden, Switzerland and Western Germany ”;

(b) in Part IV (Supplemental) of the said schedule—

(i) in paragraph 1 there were inserted after the word “ schedule ” the words “ other than those mentioned in paragraph 4 of the said Part III ”;

(ii) after paragraph 2 there were inserted the following paragraph—

“ 2A. The securities mentioned in paragraph 4 of Part III of this Schedule do not include shares

PART VII
—cont.

or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue).”.

(2) Notwithstanding anything in the said Act of 1961, the Council may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the said Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the said superannuation fund.

PART VIII

MISCELLANEOUS

Dispensation
with bonds in
respect of
theatre
managers.
1843 c. 68.

33.—(1) Except in any case where the licensing authority otherwise require, so much of section 7 of the Theatres Act, 1843, as provides that the actual and responsible manager for the time being of a theatre in respect of which a licence is granted under that Act and two sureties shall become bound in penal sums for the purposes mentioned in the said section shall cease to have effect as respects licences granted by the licensing authority under that Act.

(2) In this section “the licensing authority” means in relation to a borough in the county the borough council or a committee thereof to which the functions of the Council under the said Act have been delegated and elsewhere the justices of the county sitting in petty sessions.

Amendment
of certain
provisions of
Housing Act,
1957, relating
to closing
orders.
1957 c. 56.

34. In its application to the county the Housing Act, 1957, shall have effect as if—

(1) in subsection (2) of section 27 the following proviso were added thereto:—

“Provided that where the local authority are satisfied that part of any premises as respects which a closing order has been made has been rendered fit for human habitation, they may determine the order so far as it relates to that part.”;

(2) in paragraph (b) of subsection (3) of section 27 after the word “determine” there were inserted the words “in whole or in part”;

(3) in subsection (5) of section 27 there were added the following words:—

“ or by the owner of part of any premises where such a closing order is in force in respect of that part ”;

(4) in section 28 the following proviso were added:—

“ Provided that a demolition order shall not be made by virtue of this section in relation to any premises in respect of which a closing order has been determined so far as it relates to a part of those premises.”.

35.—(1) A local authority, for the purpose of ascertaining whether or not an offence has been committed under section 1 of the Caravan Sites and Control of Development Act, 1960, may by notice in writing, signed by their clerk or his lawful deputy, require the owner or reputed owner of any land in their district on which a caravan is stationed or any person who, either directly or indirectly, receives rent in respect of such land, to state in writing the name and address of the occupier of such land, and any person who, having been required by a local authority in pursuance of this section to give to them any information, wilfully fails to give that information within forty-two days of being so required, or knowingly makes any misstatement in respect thereof, shall be liable on summary conviction to a fine not exceeding five pounds.

As to occupiers of land on which caravans are stationed.
1960 c. 62.

(2) In this section—

“ caravan ” has the meaning assigned to it by subsection (1) of section 29 of the said Act;

“ occupier ” has the meaning assigned to it by subsection (3) of section 1 of the said Act.

36.—(1) As from the passing of this Act or the completion of the conveyance by the Council to the Watchet Urban District Council of the yard and sea wall on the south-western side of the harbour of Watchet referred to in section 9 (As to yard and sea wall at Watchet) of the West Somerset Mineral Railway (Abandonment) Act, 1923, whichever is the later—

As to sea wall at Watchet.
1923 c. xciv.

(a) the Watchet Urban District Council shall at all times maintain and keep the said sea wall in good and proper condition and repair; and

(b) the said section 9 shall be and is hereby repealed.

(2) The Watchet Urban District Council may with the consent of and upon such terms, conditions and restrictions as may be approved by the Council, transfer the said sea wall to any other authority, body or person subject to all the liabilities and obligations in respect thereof to which the said district council are subject.

PART VIII
—cont.

Application
of certain
provisions of
Somerset
County
Council
Act, 1960, to
local
authorities.
1960 c. xxvii.

37.—(1) The provisions of the Somerset County Council Act, 1960, mentioned in subsection (2) of this section shall apply to a local authority and the said provisions shall accordingly have effect with any necessary modifications including the substitution of “local authority” for “Council” and “general rate fund of the district” for “county fund”.

(2) The provisions hereinbefore referred to are—

Section 15 (General insurance fund);

Section 26 (Delegation of powers to sub-committees).

(3) In its application to the Frome Rural District Council this section shall have effect as if the reference to section 26 of the said Act of 1960 were omitted from subsection (2).

Power to
Council to
provide car
parks for
certain
purposes.

38.—(1) The Council may provide in the county parking places (whether or not consisting of or including buildings) for vehicles used by members, officers or servants of the Council, and may adapt and use for that purpose any land acquired or appropriated by them for that purpose.

1960 c. 63.

(2) The Council may authorise any parking places provided by them under the foregoing subsection to be used as parking places for vehicles for the purpose of relieving or preventing congestion of traffic and, where the Council so authorise, the provisions of subsections (6), (9) and (14) of section 81 of the Act of 1960 and of section 11 of the Road Traffic and Roads Improvement Act, 1960, shall apply in relation to such parking places as if the Council were a local authority for the district in which the parking places are provided.

(3) For the purposes of exercising the powers of the said section 81 as applied by subsection (2) of this section the provisions of sections 13 and 14 of the Road Traffic and Roads Improvement Act, 1960, shall apply to the Council as they apply to a local authority.

Extension of
parish
councils'
powers to
provide
parking
places.

39.—(1) The powers of a parish council under section 91 of the Act of 1960 to provide parking places for bicycles and motor cycles shall extend so as to authorise a parish council to provide parking places (whether or not consisting of or including buildings) for other vehicles in the circumstances and subject to the conditions prescribed by that section and the provisions of section 92 of the said Act shall apply to the exercise by a parish council of the powers of this section as they apply to such a council in the exercise of the powers of the said section 91.

(2) For the purpose of exercising the powers of the said section 91 as extended by subsection (1) of this section, the provisions of—

(a) subsections (9), (17), (18) and (19) of section 81 and section 249 of the Act of 1960; and

(b) subsections (2) to (7) of section 11 and sections 13 and 14 of the Road Traffic and Roads Improvement Act, 1960; shall apply to a parish council as they apply to a local authority. PART VIII
—cont.
1960 c. 63.

(3) The provisions of section 93 of the Act of 1960 shall apply to the exercise by a parish council of the powers of this section as they apply to such a council in the exercise of the powers of section 91 of that Act, and section 94 of that Act shall have effect accordingly.

40.—(1) A parish council may provide or arrange for the provision of, or contribute towards, the expenses of entertainments in their parish and may make or allow to be made such charges as they think fit in connection therewith. Power to
parish
councils to
provide enter-
tainments.

(2) The power of a parish council to provide entertainments under subsection (1) of this section shall include a power to provide entertainments, whether theatrical costume is or is not used in connection therewith, and either with or without appropriate scenery:

Provided that a parish council shall not directly provide or arrange for the provision of stage plays performed by persons other than members of any amateur dramatic society or any entertainment for which scenery or theatrical costume is used and which forms a complete programme of variety entertainment as usually given at a music hall.

(3) A parish council may provide and sell or authorise the provision and sale of programmes of any entertainment given in pursuance of this section.

(4) The Council may make byelaws for securing good and orderly conduct during any entertainment given in pursuance of this section.

(5) As respects byelaws made under this section the confirming authority, for the purposes of section 250 of the Act of 1933, shall be the Secretary of State.

(6) Nothing in this section—

(a) shall affect the provision of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing, or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition; or

(b) shall limit or derogate from the powers of a parish council to let land under the provisions of section 169 of the Act of 1933.

41.—(1) As from the date on which the Somerset River Authority commence to construct a sluice across the river Axe in the parishes of Bleadon and Brean in the rural district of Axbridge in the Extinguish-
ment of
rights of
navigation
over part of
river Axe.

PART VIII
—cont.

county at or in proximity to the point at National Grid reference S.T. 3082/5630 which is near Brean Cross all rights of navigation along on or over the specified part of the said river shall cease and are hereby extinguished.

1949 c. 74.

(2) Nothing in this section shall affect the application to any operation of sections 34 to 36 of the Coast Protection Act, 1949 (which require the consent of the Board of Trade to certain operations and contain other provisions for the safety of navigation).

1961 c. xxxvi.
1963 c. 38.

(3) In this section “ the specified part of the said river ” means that part of the river Axe in the parishes of Bleadon, Brean, Berrow and Lympsham in the rural district of Axbridge in the county which lies between the site of the sluice referred to in subsection (1) of this section and the doors on the seaward side of the tide sluice vested in the Somerset River Authority by virtue of section 64 (As to tidal sluice, etc., at Bleadon) of the British Transport Commission Act, 1961, and section 94 of the Water Resources Act, 1963.

PART IX

GENERAL

Application of
provisions of
Somerset
County
Council Act,
1960.

1960 c. xxvii.

42. The following provisions of the Somerset County Council Act, 1960, so far as the same are applicable in that behalf shall with any necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those provisions were re-enacted in this Act, namely—

Section 27 (Damages and charges to be settled by court);
Section 28 (Compensation how to be determined);
Section 29 (Local inquiries).

Restriction
on right to
prosecute.

43. Proceedings in respect of an offence created by or under any provision of this Act or under byelaws made under any such provision shall not without the written consent of the Attorney General be taken by any person other than a party aggrieved or the Council, the highway authority, the local authority, or the parish council (as the case may be) having an interest in the enforcement of the provision or byelaws in question or (in respect of an offence created by or under section 12 (Prohibition of parking or camping on highway verges, etc.) or any byelaws made under section 40 (Power to parish councils to provide entertainments) of this Act) a constable.

Appeals.

44.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a magistrates' court under any enactment in that Act, and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Council or a highway authority or local authority against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution no proceedings shall be taken in respect of any failure to execute the work or take the action, nor shall the Council, highway authority or local authority, as the case may be, themselves execute the work or take the action.

45.—(1) Section 265 of the Public Health Act, 1875, shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act, and as if references in that section to a member of a local authority included reference to a member of a committee of the Council or of a local authority.

Protection of members and officers from personal liability.
1875 c. 55.

(2) Section 31 (Protection of members and officers from personal liability) of the Somerset County Council Act, 1960, shall have effect as if the following were added thereto:—

“ and as if references in that section to a member of a local authority included reference to a member of a committee of the Council or of a local authority ”.

46.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 2 to this Act shall have effect as if references therein to that Act included references to this Act except section 38 (Power to Council to provide car parks for certain purposes) and section 39 (Extension of parish councils' powers to provide parking places).

Application of general provisions of Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said Schedule shall have effect as if references therein to that Act included a reference to Part V (Fire protection and public safety) of this Act.

47. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

Costs of Act.

SCHEDULES

Section 14.

SCHEDULE 1

1960 c. xxvii.

SECTION 9 OF THE SOMERSET COUNTY COUNCIL ACT, 1960, AS AMENDED
BY SECTION 14 OF THIS ACTSale of food
and articles
on verges,
etc.

9.—(1) No person (other than a person selling, offering or exposing for sale or depositing for sale any food, goods, provisions, articles or things at any market or fair for which a toll, stallage or rent is payable) shall provide, erect or place and use any shed, hut, shelter, booth, shop, stall or other erection whether on wheels or not or any vehicle or any container used with or without a stall on the verge of any road to which this section applies or on any part of a field adjacent thereto within 15 yards thereof or on any common land, unenclosed moorland or other unenclosed land of whatsoever description adjacent to and within 15 yards of a road to which this section applies for the purpose of selling, offering, depositing or exposing for sale any food, goods, provisions, articles or things whatsoever other than newspapers.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding forty shillings and to a daily fine not exceeding forty shillings.

(3) (a) This section applies to roads in the county of any of the following descriptions:—

1966 c. 42.

- (i) all trunk roads and roads which are classified as principal roads by the Minister under the Local Government Act 1966;
- (ii) any other county road, or part of a county road, to which the Minister may by order, on the application of the highway authority, apply this section.

(b) Before making application for an order under this subsection, the highway authority shall publish once at least in each of two successive weeks in a local newspaper circulating in the locality in which the road is situated a notice stating the general effect of the intended order, and stating that within a period specified in the notice (not being less than 28 days from the first publication of the notice) any person may object to the application by sending notice of his objection and of the grounds thereof to the Minister and by sending a copy thereof to the highway authority.

(c) If, before the expiration of the period specified in the notice, any objection to the application is received by the Minister from any person appearing to him to be affected, the Minister shall, before making the order, cause a local inquiry to be held and consider the report of the person who held the inquiry.

(4) Nothing in this section shall apply to—

- (a) any shed, hut, shelter, booth, shop, stall or other erection or any vehicle provided, erected or placed on private property by or with the consent of the owner of such property and with the permission of the highway authority;
- (b) any building erected or work constructed with the consent of the Minister of Housing and Local Government in pursuance of section 194 of the Law of Property Act 1925 or of any other statutory provision or any scheme made pursuant to a statute;

1925 c. 20.

- (c) the sale of food, goods, provisions, articles or things from a vehicle when in use solely for the purpose of itinerant trading with the occupants of premises adjoining any verge or common land, moorland or other land to which this section applies; SCH. 1
—cont.
- (d) the sale of food, goods, provisions, articles or things from any premises used as a shop pursuant to a permission granted or deemed to have been granted under the provisions of the Town and Country Planning Act, 1962, or any order or regulation made thereunder or in respect of which an enforcement notice cannot be served under section 45 of the said Act of 1962 by virtue of subsection (2) of that section; or 1962 c. 38.
- (e) the sale by the occupier of land used for agriculture or horticulture, and from such land, of the produce thereof, unless in relation to any particular location on such land a magistrates' court, on the complaint of the highway authority under section 43 of the Magistrates' Courts Act, 1952, determines because the use thereof for the purpose of such sale would adversely affect the safety of persons using the adjoining road that the exemption conferred by this paragraph shall not apply to that location or that the said exemption shall not apply until any condition imposed by the court in relation to access to or facilities for the parking of the vehicles of persons likely to frequent the said location in connection with such sale has been complied with. 1952 c. 55.

(5) (a) Where an application is made to a highway authority for a permission under paragraph (a) of subsection (4) of this section then unless within twenty-eight days from the date of the receipt of the application the highway authority give notice to the applicant of their decision on the application the provisions of paragraph (b) of this subsection shall apply in relation to the application as if the highway authority had refused to grant the permission applied for.

(b) Any person aggrieved by the refusal of the highway authority to grant permission under paragraph (a) of subsection (4) of this section may appeal to a magistrates' court and on any such appeal, the court may, if it appears to them that adequate facilities exist or will be provided for the parking of the vehicles of persons likely to frequent the shed, hut, shelter, booth, shop, stall or other erection, or the vehicle in question and that the provision, erection or placing of such erection or vehicle will not otherwise adversely affect the safety of persons using the adjoining road, by order direct the highway authority to withdraw such refusal and to issue the permission for which application was made.

(6) In this section—

- (a) the expression "container" includes any basket, pail, tray, package or receptacle of any kind whether open or closed;
- (b) the expression "private property" does not include common land or unenclosed moorland;
- (c) the expression "vehicle" means a vehicle of any description drawn or propelled along roads whether by animal or mechanical power.

SCHEDULE 2

Section 46.

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED TO THIS ACT OTHER THAN SECTIONS 38 AND 39

Section	Marginal note
271	Interpretation of “ provide ”.
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO Part V OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925.

1925 c. 22.

Somerset County Council Act 1967

CHAPTER xxxv

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short and collective titles.
2. Division of Act into Parts.
3. Interpretation.

PART II

LANDS

4. Power to reinstate owners or occupiers of property.
5. Suspension of restrictive covenants.
6. Compulsory acquisition of easements.
7. Compensation may be in land.
8. Undertakings and agreements binding successive owners.
9. Entry on land for certain purposes.
10. For protection of certain statutory undertakers.
11. Application of Part II to local authorities.

PART III

PLANNING

Section

12. Prohibition of parking or camping on highway verges, etc.
13. Provision of camping sites, parking places, accommodation, etc.

PART IV

HIGHWAYS

14. Amendment of section 9 of Somerset County Council Act, 1960.
15. Erection of village place names.

PART V

FIRE PROTECTION AND PUBLIC SAFETY

16. Building plans: access for fire brigade.
17. Fire precautions in certain large buildings.
18. Certain provisions not to apply to Weston-super-Mare Corporation.
19. Prescription of signs, etc., to be used on certain buildings.
20. Firemen's switches for luminous tube signs.
21. Oil-burning equipment.
22. Saving for certain enactments.
23. Disposal of dangerous containers.
24. Removal, etc., of dangerous trees.
25. Rescue apparatus.

PART VI

BURIAL GROUNDS

26. Interpretation of Part VI.
27. Agreements to maintain graves and memorials.
28. Extension of power to maintain burial grounds.
29. For protection of Commonwealth War Graves Commission.

PART VII

FINANCE

30. Power to borrow.
31. Power to Council to raise money by issue of bills.
32. Extension of power to invest superannuation fund moneys.

PART VIII

MISCELLANEOUS

Section

- 33. Dispensation with bonds in respect of theatre managers.
- 34. Amendment of certain provisions of Housing Act, 1957, relating to closing orders.
- 35. As to occupiers of land on which caravans are stationed.
- 36. As to sea wall at Watchet.
- 37. Application of certain provisions of Somerset County Council Act, 1960, to local authorities.
- 38. Power to Council to provide car parks for certain purposes.
- 39. Extension of parish councils' powers to provide parking places.
- 40. Power to parish councils to provide entertainments.
- 41. Extinguishment of rights of navigation over part of river Axe.

PART IX

GENERAL

- 42. Application of provisions of Somerset County Council Act, 1960.
- 43. Restriction on right to prosecute.
- 44. Appeals.
- 45. Protection of members and officers from personal liability.
- 46. Application of general provisions of Act of 1936.
- 47. Costs of Act.

SCHEDULES:

Schedule 1—Section 9 of the Somerset County Council Act, 1960, as amended by section 14 of this Act.

Schedule 2—Sections of Act of 1936 applied—

Part I—Sections applied to this Act other than sections 38 and 39.

Part II—Sections applied to Part V of this Act.